

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-022
Amendments to Title 5 of the Chickasaw Nation Code
(Protective Order)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for Offenses and Penalties, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 12, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 5-1201.1

DEFINITIONS.

* * *

7. “Firearm” means any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive; the frame or receiver of any such weapon; any firearm muffler or firearm silencer; or any destructive device. “Firearm” does not include an antique firearm;

78. “Foreign Protective Order” means any valid Protective Order issued by a ~~Court~~ court of another state, tribe, or territory which is consistent with the requirements of 18 U.S.C. § 2265(b).

89. “Harassment” means a knowing and willful course or pattern of conduct by a Family or Household Member or an individual who is or has been involved in a Dating Relationship with the person, directed at a specific person which seriously alarms or annoys the person, and which serves no legitimate purpose. The course of conduct must be such as would cause a reasonable person to suffer substantial emotional distress, and must actually cause substantial distress to the person. “Harassment” shall include, but not be limited to, harassing or obscene telephone calls in violation of provisions of Title 17 of the Chickasaw Code; ~~and~~

~~9~~10. "Law Enforcement Officer" or "Officer" means an officer of the Chickasaw Nation Lighthorse Police Department, a federal law enforcement agency, or a tribal or state law enforcement agency with which the Nation has entered into cross-deputation agreements, including, but not limited to, a police department in incorporated municipalities or the office of the county sheriff, or law enforcement officers of the State of Oklahoma or any other state.

~~10~~11. "Petitioner" means a person petitioning the court for a Protective Order;

~~11~~12. "Protective Order" or "Order" means a valid order or decree of a court which has the purpose of protecting a person from further harassment, stalking, abuse, or bodily injury. A Protective Order or Order includes both Final and *Ex Parte* Protective Orders.

~~12~~13. "Respondent" means the party against whom a Protective Order petition is filed; ~~and, if a Protective Order is entered, the party whose activities are restrained by the Protective Order;~~

~~13~~14. "Stalking" means the willful, malicious, and repeated following of a person by an adult, emancipated Child, or Child thirteen (13) years of age or older, in a manner that would cause a reasonable person to feel frightened, intimidated, threatened, harassed or molested. Stalking also means a course of conduct composed of a series of two or more separate acts over a period of time, however short, evidencing a continuity of purpose of unconsented contact with a person that is initiated or continued without the consent of the individual or in disregard of the expressed desire of the individual that the contact be avoided or discontinued. Unconsented contact or course of conduct includes, but is not limited to:

- a. following or appearing within the sight of the individual;
- b. approaching or confronting that individual in a public place or on private property;
- c. appearing at the workplace or residence of that individual;
- d. entering onto or remaining on property owned, leased, or occupied by that individual;
- e. contacting that individual by telephone;
- f. sending mail or electronic communications to that individual; or
- g. placing an object on, or delivering an object to, property owned, leased or occupied by that individual.

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SECTION 5-1201.3

EMERGENCY EX PARTE ORDER.

A. If a Petitioner requests an emergency *Ex Parte* Order, the ~~Court~~ **court** shall hold an *Ex Parte* hearing on the next day the ~~Court~~ **court** is in session. ~~the~~ **The Court court** may, for good cause shown at the hearing, issue any emergency *Ex Parte* Order that it finds necessary to protect the Petitioner from immediate and present danger of Domestic Abuse, Stalking, or Harassment.

B. An emergency *Ex Parte* Order authorized by this Section ~~may~~ **shall** include the following:

1. an order to the Respondent not to abuse, injure, or otherwise engage in Domestic Abuse of the victim(s);
2. an order to the Respondent not to visit, assault, or otherwise interfere with the victim(s);
3. an order to the Respondent not to threaten the victim(s);
4. an order to the Respondent ~~not to stalk or~~ to cease Stalking the victim(s);
5. an order to the Respondent to cease Harassment of the victim(s); or
6. an order to the Respondent not to contact or direct others to contact through any means, including social media;
7. an order to the Respondent to leave the residence, **if applicable; and**
8. **an order to the Respondent to surrender any Firearm in the Respondent's possession, care, custody, or control to the Chickasaw Nation Lighthouse Police Department or a federal firearms licensee immediately following the hearing or service of the *Ex Parte* Order while the Order is in effect and to refrain from purchasing, receiving, or possessing or attempting to purchase, receive or possess any Firearm while the Order is in effect. Nothing in this subsection shall prevent a Law Enforcement Officer from retrieving any Firearm(s) in Respondent's possession, care, custody, or control at any time following the issuance of an Order.**

BC. An emergency *Ex Parte* Order authorized by this Section may include the following:

- 81.** an order awarding attorney fees;
- 92.** an order requiring payment of court costs and service of process fees;
- 103.** an order requiring a preliminary inquiry in a delinquent or deprived Child proceeding;
- 114.** an order removing a Respondent who is Child from the residence by immediately placing the Child in any type of care authorized for children taken into custody; and/or

~~125.~~ an order granting other relief including suspension of an existing order for child visitation and/or custody, until further order of the ~~Court~~ court.

~~CD.~~ *Ex Parte* Orders shall be given priority for service by authorized Law Enforcement Officers and can be served twenty-four (24) hours a day.

~~DE.~~ The emergency *Ex Parte* Order shall be in effect until after a full hearing involving all parties is conducted. If the Respondent has been served prior to the hearing, but does not appear at the hearing, the *Ex Parte* Order shall remain in effect until the Respondent is served with the Final Protective Order.

SECTION 5-1201.4

HEARING; ISSUANCE OF PROTECTIVE ORDERS; PERIOD OF RELIEF.

* * *

D. Protective Orders subject to this Section ~~may~~ shall include ~~any or all of the elements enumerated in Subsection 5-1201.3(B), above, and may include any or all of the elements enumerated in Subsection 1201.3(C), above.~~

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SECTION 5-1201.11

VIOLATION OF ORDER; WARRANTLESS ARREST; PRESUMPTION OF VALIDITY OF ORDERS.

A. Pursuant to Section 5-901.2 of this Title, a Law Enforcement Officer, without a warrant, shall arrest and take into custody a person if the Law Enforcement Officer has reasonable cause to believe that:

1. An Order has been issued and served upon the person pursuant to this Chapter;
2. A true copy and proof of service of the Order has been filed with the law enforcement agency having jurisdiction of the area in which the Petitioner or any family or household member named in the Order resides or a certified copy of the Order and proof of service is presented to the Law Enforcement Officer as provided in Subsection D of this Section;
3. The person named in the Order has received notice of the Order and has had a reasonable time to comply with the Order; and
4. The person named in the Order has violated the Order or is then acting in violation of the Order.

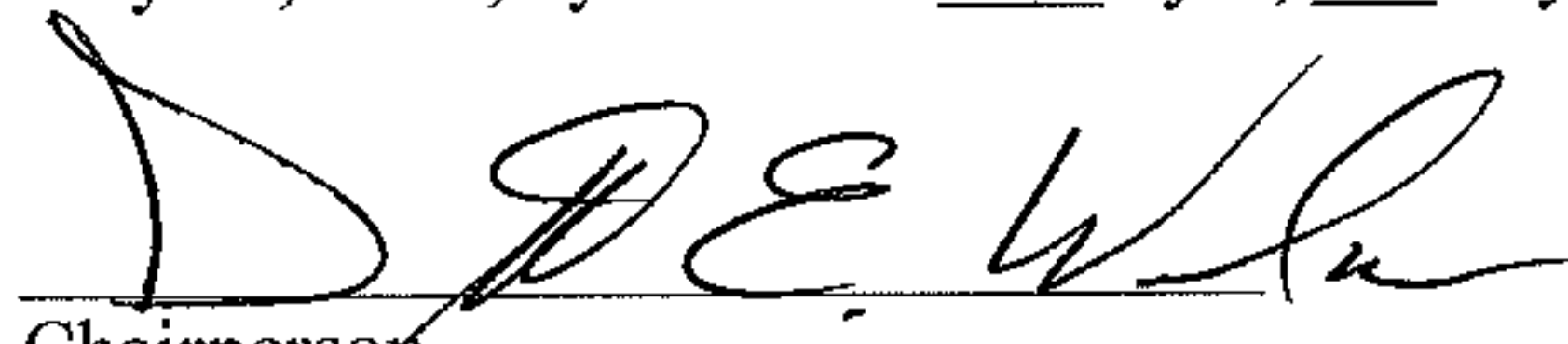
B. A Law Enforcement Officer, without a warrant, shall arrest and take into custody a person if the following conditions have been met:

1. The Law Enforcement Officer has reasonable cause to believe that a Foreign Protective Order has been issued, pursuant to the law of the state or tribal court where the Foreign Protective Order was issued;
 2. A copy of the Foreign Protective Order has been presented to the Law Enforcement Officer that appears valid on its face; and
 3. The Law Enforcement Officer has reasonable cause to believe the person named in the Order has violated the Order or is then acting in violation of the Order.
- C. A person arrested pursuant to this Section shall be brought before the Court after arrest, pursuant to Section 5-501.4(A), to answer to a charge for violation of the Order, at which time the court shall do each of the following:
1. Set a time certain for a hearing on the alleged violation of the Order within seventy-two (72) hours after arrest, unless extended by the court on the motion of the arrested person;
 2. Set a reasonable bond pending a hearing of the alleged violation of the Order, provided, however, that the court may also consider the safety of any and all alleged victims that are subject to the protection of the Order prior to the Court setting a reasonable bond pending a hearing of the alleged violation of the Order; and
 3. Notify the party who has procured the Order and direct the party to appear at the hearing and give evidence on the charge.
- D. A copy of a Protective Order shall be *prima facie* evidence that such Order is valid in this jurisdiction when such documentation is presented to a Law Enforcement Officer by the plaintiff, defendant, or another person on behalf of a person named in the Order. Any Law Enforcement Officer may rely on such evidence to make an arrest for a violation of such Order, if there is reason to believe the defendant has violated or is then acting in violation of the Order without justifiable excuse. When a Law Enforcement Officer relies upon the evidence specified in this subsection, such officer and the employing agency shall be immune from liability for the arrest of the defendant if it is later proved that the evidence was false.

SECTION 5-1201.12**PRESENTATION OF AN ALTERED OR FALSE
PROTECTIVE ORDER.**

- A. It shall be unlawful to knowingly and willfully present any false or materially altered Protective Order to any Law Enforcement Officer to effect an arrest of any person.
- B. Presentation of an Altered or False Protective Order shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2021, by a vote of 12 ayes, 0 nays, and 0 abstentions.

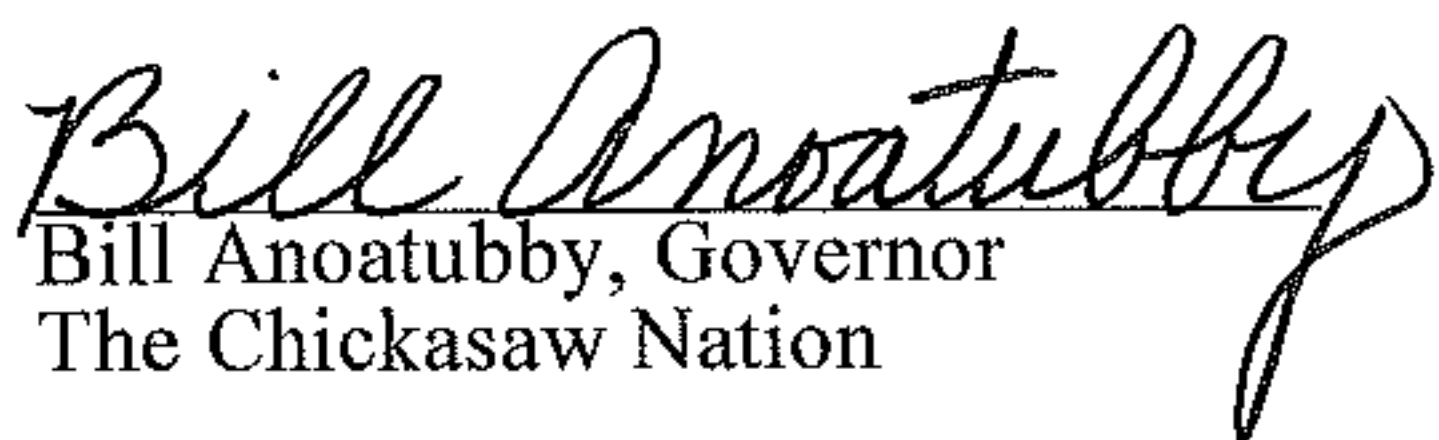


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

MAY 24 2021

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-022
Amendments to Title 5 of the Chickasaw Nation Code
(Protective Order)

Explanation:

This Resolution adds new Code provisions to Title 5, Chapter 12. First, the language concerning surrendering firearms for persons that are the subject of a protective order were clarified and strengthened. Second, a new Code provision allows for the warrantless arrest of a person for violation of a protective order, though not in the officer's presence. Third, a new Code section creates a criminal offense for presenting an altered or forged protective order to law enforcement.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature